

22STCV10819 22STCV10819

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Case Number: 22STCV10819 Hearing Date: August 17, 2026 Dept: 11

Final Approval of Class Action Settlement

Department SSC-11

Kevin Adonay Quijada Molina v. CCN Framing, Inc.

Case

No.: 22STCV10819

Hearing: August 17, 2026

TENTATIVE RULING

CONTINUE final approval for the parties to
address the following:

1.

The

administrator's declaration is dated July 16, 2026, which is before the class notice's Additional Class Members Response Deadline of August 17, 2026 to object or opt out. (See Decl. of Beth Paris, ¶11.) The parties should file another declaration from the administrator summarizing the total number of opt outs and objections as of August 17, 2026.

Upon approval, the following order may issue:

The Court GRANTS final approval and awards/approves
as follows:

(1) \$216,666.67 for attorney fees to Class Counsel, Wilshire Law Firm, PLC; (2) \$25,378.28 for attorney costs to Class Counsel; (3) enhancement award of \$7,500 to the class representative, Kevin Adonay Quijada Molina; (4) \$30,000 (75% of \$40,000 PAGA penalty) to the LWDA; and (5) \$16,000 for settlement administration costs to Apex Class Action, LLC.

Class Counsel is ordered to lodge a proposed Order consistent with this ruling and a separate judgment containing the class definition, release language, and a statement that no class members opted out of the settlement by _____, 2026.

BACKGROUND

Plaintiff

Kevin

Adonay Quijada Molina sues Defendant CCN Framing, Inc. for alleged wage and hour violations. Plaintiff seeks to represent a class of Defendant's current and former non-exempt employees.

On March 29, 2022, Plaintiff commenced the Action by filing a Complaint alleging causes of action against Defendant for failure to pay minimum and straight time wages, failure to pay overtime wages, failure to provide meal periods, failure to authorize and permit rest periods, failure to timely pay final wages at termination, failure to provide accurate itemized wage statements, failure to indemnify necessary business expenditures, and unfair business practices.

On

October 28, 2022, Plaintiff filed a First Amended Complaint in the Action containing an additional cause of action against Defendant for Violation of PAGA.

On

August 14, 2024, the Parties participated in an all-day mediation presided over by Mark LeHocky, Esq., which ultimately resulted in settlement. The terms of settlement were finalized in the long-form Class Action and PAGA Settlement Agreement ("Settlement Agreement"), a copy of which was filed with the Court on June 18,

2025.

On February

2, 2026, after the parties filed further briefing and a revised Settlement Agreement to address concerns raised by the Court, preliminary approval of the settlement was granted. All references below are to the agreement attached to the Declaration of Lucy Nguyen filed January 30, 2026.

Notice was given to the Class Members as ordered. (See Declaration of Beth Paris ("Paris Decl.") Now before the Court is the Motion for Final Approval of the Settlement.

SETTLEMENT CLASS DEFINITION

"Class"

means all persons employed by Defendant in California and classified as an hourly-paid or non-exempt employee who worked for Defendant during the Class Period. (§1.5)

"Class

Period" means the period from October 2, 2017 through the date the Court grants Preliminary Approval. (§1.12)

"Aggrieved

Employee" means a person employed by Defendant in California and classified as an hourly-paid or non-exempt employee who worked for Defendant during the PAGA Period. (§1.4)

"PAGA

Period" means the period from April 8, 2021 through the date the Court grants Preliminary Approval. (§1.31)

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"Participating

Class Member" means a Class Member who does not submit a valid and timely Request for Exclusion from the Settlement. (§1.35)

TERMS OF SETTLEMENT AGREEMENT

The essential terms are as

follows:

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The Gross

Settlement Amount ("GSA") is \$650,000, non-reversionary. (¶3.1)

o Escalator Clause: Based on its records,

Defendant estimates that, as of the date of this Settlement Agreement, there are 1,800 Class Members and 47,523 Total Workweeks during the Class Period through August 14, 2024. In the event the number of workweeks worked by the Class Members increases by more than 10% (i.e. more than 52,275), Defendant shall have the option of either: (a) increasing the Gross Settlement Amount pro rata for every additional workweek worked by the Class Members above that 10% threshold (i.e. if the actual number of workweeks worked by the Class Members is 11 % larger than this estimate, the Gross Settlement Amount shall be increased by 1 %) or (b) ending the Class Period on the date that the number of workweeks worked by the Class Members equals 52,275, in which case no adjustment to the Gross Settlement Amount shall be made. (¶8)

o At final approval, the settlement

administrator represents that the total number of workweeks worked by Participating Class Members during the Class Period is 46,141, which did not trigger the Escalator Clause. (Paris Decl., ¶15.)

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The

Net Settlement Amount ("Net") estimated at preliminary approval (\$339,333.33) is the GSA minus the following:

Up

to \$216,666.67 (33 1/3%) for attorneys' fees (¶3.2.2);

Up

to \$28,000 for attorneys' costs (Ibid.);

Up

to \$10,000 for a Service Payment to the class representative (¶3.2.1);

Up

to \$16,000 for costs of
settlement administration (§13.2.3); and

o Payment of \$40,000 PAGA Penalty (75% or \$30,000 to the LWDA). (§13.2.5)

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Defendant

will separately pay any and all employer payroll taxes owed on the Wage
Portions of the Individual Class Payments. (§13.1)

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There

is no claim form requirement. (§13.1)

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Individual Settlement Payment Calculation: Each Participating Class Member will receive
an Individual Class Payment calculated by (a) dividing the Net Settlement
Amount by the total number of Workweeks worked by all Participating Class
Members during the Class Period and (b) multiplying the result by each
Participating Class Member's Workweeks. (§13.2.4)

o PAGA Payments: The Administrator will
calculate each Individual PAGA Payment by (a) dividing the amount of the
Aggrieved Employees' 25% share of PAGA Penalties \$10,000.00 by the total number
of PAGA Period Pay Periods worked by all Aggrieved Employees during the PAGA Period
and (b) multiplying the result by each Aggrieved Employee's PAGA Period Pay
Periods. (§13.2.5.1)

o Tax Allocation: Individual Class Payments to
the Class Members shall be attributed as follows: 10% to wages, 90% to
penalties and interest. (§13.2.4.1) The
Administrator will report the Individual PAGA Payments on IRS 1099 Forms.
(§13.2.5.2)

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Response Deadline: "Response Deadline" means 45 days after the
Administrator mails Notice to Class Members and Aggrieved Employees, and shall
be the last date on which Class Members may: (a) fax, email, or mail Requests

for Exclusion from the Settlement, or (b) fax, email, or mail his or her Objection to the Settlement. Class Members to whom Notice Packets are resent after having been returned undeliverable to the Administrator shall have an additional 14 calendar days beyond the Response Deadline has expired. (§1.43) The same deadline applies to the submission of workweek disputes. (§7.6)

o If the number of valid Requests for Exclusion identified in the Exclusion List exceeds 10% of the total of all Class Members (i.e. more than 180 Class Members), Defendant may, but is not obligated, elect to withdraw from the Settlement. (§9)

Funding

of the Settlement: Defendant shall fully fund the Gross Settlement Amount, and also fund the amounts necessary to fully pay Defendant's share of payroll taxes by transmitting the funds to the Administrator no later than 30 days after the Effective Date. (§4.4)

Distribution:

Within 14 days after Defendant funds the Gross Settlement Amount, only after approval by the Parties of the final distribution amounts, the Administrator will mail checks for all Individual Class Payments, all Individual PAGA Payments, the LWDA PAGA Payment, the Administration Expenses Payment, the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, and the Class Representative Service Payment. Disbursement of the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment and the Class Representative Service Payment shall not precede disbursement of Individual Class Payments and Individual PAGA Payments. (§4.5)

Uncashed Settlement Checks: The face of each check shall prominently state the date (not less than 180 days after the date of mailing) when the check will be voided. (§4.4.1) For any Class Member whose Individual Class Payment check or Individual PAGA Payment check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to the California Controller's Unclaimed Property Fund in the name of the Class Member thereby leaving no "unpaid residue" subject to the requirements of California Code of Civil Procedure Section 384, subd. (b). (§4.4.3)

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The

settlement administrator will be Apex Class Action Administration. (§1.2)

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The proposed Settlement

Agreement was submitted to the LWDA on January 30, 2026. (Proof of Service attached to Declaration of Lucy Nguyen ISO Prelim.)

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Releases of Claims.

Effective on the date when Defendant fully funds the entire Gross Settlement Amount and funds all employer payroll taxes owed on the Wage Portion of the Individual Class Payments, Plaintiffs, Class Members, and Class Counsel will release claims against all Released Parties as follows: (§5)

o Release

by Participating Class Members: All Participating Class Members, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, release Released Parties from any and all claims that were alleged or reasonably could have been alleged based on the facts pled in the operative First Amended Complaint, including but not limited to, state wage and hour claims for any and all violations of California's Labor Code and Unfair Competition Law based on Defendant's failure to pay for all hours worked (including minimum, straight time, and overtime wages), failure to provide meal periods, failure to authorize and permit rest periods, failure to timely pay final wages at termination, failure to furnish accurate itemized wage statements, and failure to indemnify employees for expenditures based on the alleged Labor Code violations, and all damages, interest, penalties, attorneys' fees, costs, and other amounts recoverable under said causes of action under California law, to the extent permissible, including, but not limited to, the California Labor Code and the applicable Wage Orders. Except as set forth in Section 5.3 of this Agreement, Participating Class Members do not release any other claims, including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation, or claims based on facts occurring outside the Class Period. (§5.2)

o Release

by Aggrieved Employees: All Aggrieved Employees are deemed to release, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, the Released Parties from all claims for PAGA penalties that were alleged, or reasonably could have been alleged, based on the facts pled in the operative First Amended Complaint, and/or the PAGA Notice, including any and all claims involving any alleged failure to pay minimum wages or overtime, failure to provide meal and rest periods, failure to provide accurate wage statements, failure to pay all wages due at separation, and failure to reimburse business expenses, including Labor Code sections 201,202,203,210, 216, 223, 225.5, 226, 226.3, 226.7, 245-248.5, 256, 432, 432.5, 432.7, 510, 512, 558, 558.1, 1024.5, 1174, 1194, 1197, 1197.1, 1198, 1198.5, 1199, 2699, 2699.3, 2802, 2810.5 during the PAGA Period. Aggrieved Employees only release these claims for the duration of the PAGA Period. (§5.3)

§ Because

future PAGA claims are subject to claim preclusion upon entry of the Judgment, Non-Participating Class Members who are Aggrieved Employees are deemed to release the claims identified in Paragraph 5.3 of this Agreement and are eligible for an Individual PAGA Payment. (§7.5.3)

o "Released

Parties" means: Defendant and each of its former and present directors, officers, shareholders, owners, members, principals, attorneys, insurers, predecessors, successors, assigns, parent companies, subsidiaries, affiliates, and assigns, and any other person, corporation, association, or partnership responsible or potentially responsible for any claims made or that could have been made in the Action (including, but not limited to, any alleged employers or joint employers of Plaintiff, the Class Members, or the PAGA Members), and the former and present directors, officers, shareholders, owners, members, principals, attorneys, insurers, predecessors, successors, assigns, parent companies, subsidiaries, affiliates, and assigns of any of the foregoing. (§1.41)

o Named Plaintiff will additionally provide a general release and §1542 waiver. (§5.1)

ANALYSIS OF SETTLEMENT AGREEMENT

A.

Does a presumption of fairness exist?

The Court preliminarily found in its Order of February 2, 2026 that the presumption of fairness should be applied. No facts have come to the Court's attention that would alter that preliminary conclusion.

Accordingly, the settlement is entitled to a presumption of fairness as set forth in the preliminary approval order.

B.

Is the settlement fair, adequate, and reasonable?

The settlement was preliminarily found to be fair, adequate and reasonable. Notice has now been given to the Class.

Reaction
of the class members to the proposed settlement.

Number of Class Members: 1,805 (Paris Decl., ¶¶5, 10.)

Number of notice packets mailed: 1,805 (Id.
at ¶¶7, 10.)

Number of undeliverable notices: 198 (Id. at ¶9.)

Number of opt-outs: 0 (Id. at ¶12.)

Number of objections: 0 (Id. at ¶13.)

Number of participating class members: 1,805

Average individual payment: \$189.45 (Id. at ¶16.)

Highest individual payment: \$3,038.55 (Ibid.)

The

Court finds that the notice was given as directed and conforms to due process requirements. Given the reactions of the

Class Members to the proposed settlement and for the reasons set for in the Preliminary Approval order, the settlement is found to be fair, adequate, and reasonable.

C. Attorney Fees and Costs

Class

Counsel requests an award of \$216,666.67 in fees and \$25,378.28 in costs. (Memo ISO Final at 7:26-28, 17:16-18.) The Settlement Agreement provides for up to \$216,666.67 (33 1/3%) for attorney fees and \$28,000 in costs (§3.2.2).

"Courts

recognize two methods for calculating attorney fees in civil class actions: the lodestar/multiplier method and the percentage of recovery method." (Wershba v. Apple Computer, Inc. (2001) 91 Cal.App.4th 224, 254.) Here, class counsel request attorney fees using the percentage method, as crosschecked by lodestar. (Memo ISO Final at pp. 12-17.)

In

common fund cases, the Court may employ a percentage of the benefit method, as cross-checked against the lodestar. (Laffitte v. Robert Half Int'l, Inc. (2016) 1 Cal.5th 480, 503.) The fee request represents one-third of the gross settlement amount, which is the average generally awarded in class actions. (See In re Consumer Privacy Cases (2009) 175 Cal.App.4th 545, 558, fn. 13 ["Empirical studies show that, regardless whether the percentage method or the lodestar method is used, fee awards in class actions average around one-third of the recovery."].)

Class

Counsel has provided information, summarized below, from which the lodestar may be calculated:

Attorney

Rates

Hours

Totals

Benjamin
H. Haber

\$925

87.3

\$80,752.50

Daniel
J. Kramer

\$825

8.4

\$6,930.00

Alan
Wilcox

\$950

15.5

\$14,725.00

Lucy
Nguyen

\$600

5.5

\$3,300.00

Rebecca
Padilla

\$200

18.6

\$3,720.00

Coley

Hayes

\$200

10.2

\$2,040.00

Justin

F. Marquez

\$1,000

25

\$25,000.00

Totals

170.5

\$136,467.50

(Declaration of Alan Wilcox ISO Final, ¶16.)

Counsel's

percentage-based fee request is higher than the unadjusted lodestar, and would represent application of a multiplier of approximately 1.59x to reach.

Here,

the \$216,666.67 fee request

represents a reasonable percentage of the total funds paid by Defendant. Notice

of the fee request was provided to class members in the notice packet, and no one objected. (Paris Decl., ¶12, Exhibit A.)

As

for costs, Class Counsel is requesting a cost amount of \$25,378.28. This is less than the \$28,000 cap provided for at preliminary approval, which was disclosed to Class Members in the Notice and not objected to. (Paris Decl., ¶12, Exhibit A.) Counsel represents that costs include, but are not limited to: filing fees, service of documents, Case Anywhere, expert consultant fees, and mediation fee. (Wilcox Decl. ISO Final, ¶24, Exhibit 3.) The costs incurred appear to be reasonable in amount and reasonably necessary to this litigation.

Based on the above, the recommendation is to award \$216,666.67 in fees and \$25,378.28 in costs.

D. Incentive Award

The class representative, Kevin Adonay Quijada Molina, seeks an enhancement payment of \$10,000 for his contributions to the action. (Memo ISO Final at 18:20-22.)

In connection with the final fairness hearing, named Plaintiffs must submit declarations attesting to why they should be entitled to an enhancement award in the proposed amount. The named Plaintiffs must explain why they “should be compensated for the expense or risk he has incurred in conferring a benefit on other members of the class.”

(Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 806.) Trial courts

should not sanction enhancement awards of thousands of dollars with “nothing more than pro forma claims as to ‘countless’ hours expended, ‘potential stigma’ and ‘potential risk.’

Significantly more specificity, in the form of quantification of time and effort expended on the litigation, and in the form of reasoned explanation of financial or other risks incurred by the named plaintiffs, is required in order for the trial court to conclude that an enhancement was ‘necessary to induce [the named plaintiff] to participate in the suit’” (Id.

at 806-807, italics and ellipsis in original.)

Plaintiff represents that his contributions to this litigation include: discussing the case and mediation with his counsel by phone, searching for and reviewing documents, and reviewing the settlement. He estimates spending 70 hours on the case. (Declaration of Kevin Adonay Quijada Molina ISO Prelim, ¶¶6-8.)

Based on the above, as well as the benefits obtained on behalf of the class, the court grants enhancement payment in the amount of \$7,500 to Plaintiff.

E.

Settlement Administration Costs

The settlement administrator, Apex Class Action, is requesting \$16,000 for the costs of settlement administration. (Paris Decl., ¶20.) This is less than the estimated cost of \$20,000 provided for in the settlement agreement (¶3.2.3) and disclosed to class members in the Notice, to which there were no objections. (Paris Decl., ¶12, Exhibit A.) Based on the above, the recommendation is to award costs in the requested amount of \$16,000.